From: Yasmin Sandhu
To: Validation
Cc: Joanne Howse
Subject: RE: S/OUT/13/1555 [SHMA-ACTIVE.FID10328570]
Date: 10 December 2024 14:57:20
Attachments: image012.png
image014.png
image015.png
image016.png
image017.png
image018.png
image019.png
image002.png
DOV - South Marstom(33940154.1).docx

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Good afternoon

Many thanks for providing the link.

The payment link requested just over 1108.80, however we are seeking a minor change of a Section 106 agreement to bring an agreement up to date with mortgage lenders criteria therefore the payment requested should be £138.60 + VAT. Please can a revised payment link be sent.

I trust below is all the details that you do need.

A supporting statement explaining why you'd like to change the agreement - The main reason for the DOV is to amend the definition of disposal so as to expressly include a disposal by way of grant of mortgage or charge. Further, it seems that the drafting of the carve-out clause is unclear, typically the carve-out clause would be drafted to exclude the owners/occupiers of AH units save in respect of the AH obligations. However, the drafting could be interpreted as the AH owners/occupiers being excluded from the carve-out clause.

Name and address of all owner(s) including confirmation that they agree to the changes – We are seeking to apply the DOV to part of the land bound by the s106 (plan attached). VISTRY HOMES LIMITED (Company Registration Number 00397634) own this part of the land and their address is 11 Tower View, Kings Hill, West Malling, ME19 4UY. Vistry have approved the current attached draft.

Full address of the property – Land north of A420 Eastern Villages, Swindon (plan attached)

Legal representative details – I have been instructed on the s106 DOV by Cottsway Housing Association who will soon be taking ownership of the Affordable Units contained within the boundary of the plan attached.
Yasmin Sandhu – Solicitor at Shakespeare Martineau
Yasmin-sandhu@shma.co.uk

Cottsway Housing Association contact details – Sigrid Houston sigrid.houston@cottsway.co.uk

Original planning obligation - S/OUT/13/1555 - the Agreement dated 11 September 2021 relating to development at land at North of A420, Swindon and made between Hallam Land Management (1) and Hannick Homes & Developments Limited (2) and Taylor Wimpey UK Limited (3) and Swindon Borough Council (4) and The Owners (5)

Undertaking to meet Council legal costs – we agree to provide an undertaking once an amount has been requested.

I look forward to hearing from you.

Kind regards,

Yasmin Sandhu
Solicitor

D 0121 214 0552
M 07483 937 039
F 0121 237 3011
E yasmin.sandhu@shma.co.uk

Main T 0121 214 0000

Over the festive period our offices will close at 5:30pm on 24 December and reopen at 9:00am on 30 December. We'll then close again at 5:30pm on 31 December, returning at 9:00am on 2 January, ready to welcome 2025 with open doors (and coffee).

If you have an urgent query when our offices are closed, please call us on 0330 024 0333.

Whatever this season means for you, we wish you a very Happy Christmas and a peaceful New Year.

Shakespeare Martineau
No 1 Colmore Square, Birmingham, B4 6AA
DX721090 Birmingham 43

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From: Validation <Validation@swindon.gov.uk>
Sent: Monday, December 9, 2024 4:09 PM
To: Yasmin Sandhu <Yasmin.Sandhu@shma.co.uk>
Cc: Joanne Howse <JHowse@swindon.gov.uk>
Subject: RE: S/OUT/13/1555 [SHMA-ACTIVE.FID10328570]

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Good afternoon,

Please find the link for more information on varying/discharging Section 106 agreements, including the fees:

Your guide to planning continued | Your guide to planning | Swindon Borough Council

Kate Osborne

Planning Technician

Inclusive Economy and Sustainability
Swindon Borough Council

Swindon Borough Council

www.swindon.gov.uk

From: Yasmin Sandhu <Yasmin.Sandhu@shma.co.uk>
Sent: 09 December 2024 15:06
To: Validation <Validation@swindon.gov.uk>
Subject: RE: S/OUT/13/1555 [SHMA-ACTIVE.FID10328570]

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Good afternoon

Please can you confirm whether this fee is mandatory and a new process?

I have dealt with several DOV's with Swindon Council and have never been requested the planning application fee?

Many thanks,

Yasmin Sandhu
Solicitor

D 0121 214 0552
M 07483 937 039
F 0121 237 3011
E yasmin.sandhu@shma.co.uk

Main T 0121 214 0000

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From: Validation <Validation@swindon.gov.uk>
Sent: Friday, December 6, 2024 10:38 AM
To: Yasmin Sandhu <Yasmin.Sandhu@shma.co.uk>
Subject: FW: S/OUT/13/1555 [SHMA-ACTIVE.FID10328570]

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Good morning,

Thank you for your email.

In order to process the request to vary the s106, we will need:

- a supporting statement or letter explaining why you'd like to change the agreement
- a name and address of all owner(s) including confirmation that they agree to the changes
- the full address of the property including postcode
- the name and contact details (including email address and phone/mobile number) of your solicitor
- your own contact details (including email address and phone/mobile number) for the purpose of forwarding to our legal services
- details of the original obligation (date and planning reference)
- a plan showing the area covered by the obligation
- an undertaking to meet the council's legal costs

The request also comes with a fee of £1108.80. I will send you a link to pay this online, via email.

Jo Howse
Planning Technician

Planning – Development Control
Swindon Borough Council

Please note my working hours are Monday-Friday 9am-2.30pm

www.swindon.gov.uk

From: SBC Development Control <SDevelopmentControl@swindon.gov.uk>
Sent: Wednesday, December 4, 2024 12:08 PM
To: Validation <Validation@swindon.gov.uk>
Subject: FW: S/OUT/13/1555 [SHMA-ACTIVE.FID10328570]

From: Yasmin Sandhu <Yasmin.Sandhu@shma.co.uk>
Sent: Tuesday, December 3, 2024 4:06 PM
To: Edward Snook <ESnook@swindon.gov.uk>; Benjamin James <BJames@swindon.gov.uk>; SBC Development Control <SDevelopmentControl@swindon.gov.uk>
Cc: SBC Development Control <SDevelopmentControl@swindon.gov.uk>
Subject: S/OUT/13/1555 [SHMA-ACTIVE.FID10328570]

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Good afternoon all

By way of introduction, I am acting for Cottsway Housing Association in respect of a Deed of Variation that is sought in respect of the above planning application.

We have attached a DOV for your consideration. You will note that the main reason for the DOV is to amend the definition of disposal so as to expressly include a disposal by way of grant of mortgage or charge. Further, it seems that the drafting of the carve-out clause is unclear, typically the carve-out clause would be drafted to exclude the owners/occupiers of AH units save in respect of the AH obligations. However, the drafting could be interpreted as the AH owners/occupiers being excluded from the carve-out clause.

The land (to be bound by the DOV) is currently owned by Vistry Homes and my client will be purchasing affordable plots from Vistry. I have circulated the draft with Vistry and they have approved the attached draft.

Please could you instruct legal on the DOV and do let me know if I can be of any further assistance.

305258.135

All the best,

Yasmin

Yasmin Sandhu
Solicitor

D 0121 214 0552
M 07483 937 039
F 0121 237 3011
E yasmin.sandhu@shma.co.uk

Main T 0121 214 0000

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